Indiana

GENERAL INFORMATION

1. Indiana **maintains** a list of eligible surplus lines insurers (foreign only) (see Other Comments section #1).
2. Indiana **does not** have a Surplus Lines Association.
3. Indiana **does not** have an Export list.
4. Indiana **does** have an industrial insured exemption (see Appendix C) which will remain in effect. As of 7/21/2011, the NRRA commercial purchaser exemption also became effective.
5. **Surplus lines tax**: 2.5%, payable by broker.
6. Indiana **does not** allow the formation of domestic surplus lines insurers in the state.

ELIGIBILITY AND FILING REQUIREMENTS (ALL INSURERS)

Indiana does not impose formal eligibility requirements other than a sponsoring broker requirement for foreign surplus lines insurers as noted below.

ELIGIBILITY AND FILING REQUIREMENTS (ALIEN INSURERS ONLY)

NAIC Listing: If alien insurer appears on NAIC Quarterly List, it is approved to do business in Indiana.

ELIGIBILITY AND FILING REQUIREMENTS (FOREIGN INSURERS ONLY)

Sponsoring broker: A licensed surplus lines producer must request by letter or by email that a foreign (U.S.) surplus lines insurer be added to the state's eligibility list.

TYPES OF INSURANCE EXEMPTED FROM SURPLUS LINES REGULATION

Industrial Insurance (see Other Comments section #3).

OTHER COMMENTS OR REQUIREMENTS

1. Indiana's eligibility list is available at http://www.in.gov/idoi/2567.htm. Such list applies to foreign surplus lines only; alien surplus lines companies are automatically eligible for surplus lines in this state if they appear on the NAIC Quarterly List of Alien Insurers.
2. Insurance commissioner may order surplus lines broker to cancel unauthorized insurer's policies if he or she believes financial condition of such insurer does not warrant continuation of the risk.

3. Commercial insureds that purchase insurance under the "industrial insured" exception to the state's unauthorized insurers statute must notify the Indiana DOI of such transactions and, among other things, document that the purchased coverage was not available in the admitted market.
4. Resident surplus lines producers are not required to hold a tax guarantee bond in the amount of $20,000. The surplus lines license is a two-year license.
5. The Indiana DOI converted to birth month renewal. Business entity license will continue to renew the month initially licensed. Also, invoices for renewals will no longer be printed and mailed. If producer wishes to receive notice, he or she must ensure his or her email address is on file with the Indiana DOI.
6. The Indiana DOI imposes retaliatory fees for non-resident surplus line producers of CA, CI, IL, MA, and NJ.
7. Effective July 13, 2023, Indiana established certain motor vehicle insurance coverage requirements for a delivery network company and a delivery network company driver. Such coverage may be placed through a surplus lines producer (House Bill 1125).

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